



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 19 1990

DOT-E 10483

1. City of Plattsburgh, New York Water Pollution Control Plant, Plattsburgh, New York, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a nonflammable gas subject to the limitations and special requirements specified herein. This exemption authorizes tank cars loaded with chlorine to remain attached to transfer connections when the unloading process is discontinued, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Detroit Water and Sewage Department's application of October 5, 1990, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Chlorine, classed as a nonflammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Chlorine.

5. REGULATION AFFECTED. 49 CFR Part 107, Appendix B; 174.67(i) and (j).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. Packagings prescribed are DOT Specification 105A500W tank car tanks stencilled either DOT 105A300W or 105A500W.

b. A copy of the Chlorine Institute Manual and the Chlorine Institute's Pamphlets 6, 57, and 66 must be on file at each location that uses this exemption for information on employee training and safety, emergency measures, and recommended procedures for the installation of piping systems and emergency shut off facilities, and procedures to be followed during unloading operations.

c. An employee who is familiar with the nature and properties of the material being unloaded must be made responsible for unloading.

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d. The employee responsible for unloading must be instructed on the procedures to be followed during unloading and, in the event of an emergency, has the authority and ability to halt the flow of product and take emergency actions.

e. When an electronic or mechanical monitoring device is used, the device must be capable of immediately halting the flow of product or alerting an employee responsible for unloading in the event of an emergency.

f. The electronic or mechanical monitoring device must provide immediate notification of any malfunction to the person responsible for unloading, or the device must be checked hourly for malfunction. In the case of malfunction, the device will no longer be relied upon, and instead the individual responsible for unloading will constantly observe the unloading process.

8. SPECIAL PROVISIONS.

a. Any manually operated switch providing access to the track on which the equipment is located must be lined against movement to that track and locked with an effective locking device other than a railroad lock.

b. A derail (one that is capable of restricting access to that portion of track within the area on which the tank car tanks are located) must be positioned at least 50 feet from the end of the equipment to be protected by the caution sign. The derail must be locked in the derailing position with an effective locking device by the employee performing the unloading/loading operation other than a railroad lock.

c. Written safety procedures must be on file with the Office of Hazardous Materials Exemptions and Approvals at each location where the unloading is performed and contain at least the following:

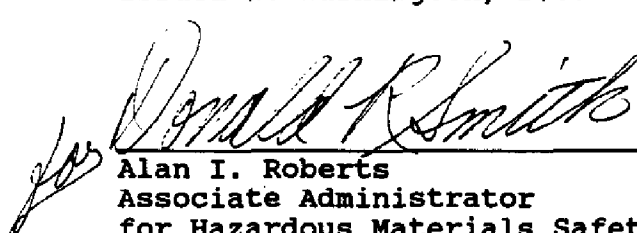
- monitoring of the transfer process [see paragraphs 7(c), (d), (e) and (f)]
- employee safety
- unloading/loading procedures
- movement of tank cars adjacent to unloading/loading racks
- testing and maintenance of system components
- emergency measures (see Section 4 of the Chlorine Institute Manual)

- d. The marking requirements of Appendix B to Subpart B of Part 107 do not apply to tank cars unloaded under this process.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. September 30, 1992.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.